

24STCV31395 24STCV31395

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Case Number: 24STCV31395 Hearing Date: August 7, 2026 Dept: 414

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Perez v. Galvan

Friday,

August 7, 2026

[TENTATIVE] ORDER TAKING OFF CALENDAR DEMURRER AND MOTION TO STRIKE CROSS COMPLAINANT'S VERIFIED CROSS-COMPLAINT (9477). ORDER SETTING ORDER TO SHOW CAUSE RE: STRIKING OR VACATING THE DEFAULT

The Demurrer to the Cross-Complaint and Motion to Strike filed by Cross-Defendant, Jose Perez, (Cross-Defendant or Perez) is procedurally defective. Cross-Complainant filed the Cross-Complaint on August 25, 2025. As Cross-Defendant did not respond to the pleading, the clerk entered default against Cross-Defendant on October 16, 2025.

Cross-Defendant successfully moved to vacate default when the Court granted Cross-Defendant's motion and vacated the October 16, 2025, default. (M.O. 3.26.26.) The Court independently reviewed the Court's electronic file and determined that the clerk entered Cross-Defendant's default on May 7, 2026. Neither party addressed the second entry of default in the papers submitted in connection with the demurrer and motion to strike.

Although Cross-Defendant attached a proposed demurrer to his prior motion for relief from default, the proposed pleading was not separately filed. The Court's March 26, 2026, order vacating the original default neither deemed the proposed demurrer filed nor directed

the clerk to file it. Cross-Defendant thereafter filed the present demurrer and motion to strike on May 8, 2026, one day after the clerk entered the second default.

A defaulting party may not file or prosecute a demurrer while the default remains in effect. The subsequent filing of an answer or demurrer is unauthorized unless the default is first set aside. (A & B Metal Products v. MacArthur Properties, Inc. (1970) 11 Cal.App.3d 642, 647.) Accordingly, the Court cannot presently consider the merits of the demurrer or motion to strike.

The circumstances surrounding the second entry of default, however, require further inquiry. Cross-Defendant had appeared through counsel, successfully moved to vacate the original default, and attached to that motion the proposed demurrer he intended to file. Cross-Complainant therefore knew that Cross-Defendant intended to defend the cross-complaint. The Court's March 26, 2026, order did not specify when Cross-Defendant was required to file the proposed responsive pleading. Forty-one days after notice of that order was served, Cross-Complainant obtained entry of Cross-Defendant's default. Cross-Defendant filed the contemplated demurrer the following day.

The record presently before the Court does not disclose whether Cross-Complainant warned Cross-Defendant's counsel that Cross-Complainant intended to request entry of default or otherwise provided counsel a final opportunity to file the responsive pleading. The Court therefore makes no finding on that issue at this time. If Cross-Complainant sought entry of default without reasonable advance warning to counsel known to represent a party who intended to defend the action, however, such conduct would implicate the principles discussed in *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 701–702, *LaSalle v. Vogel* (2019) 36 Cal.App.5th 127, 134–137, and *McClain v. Kissler* (2019) 39 Cal.App.5th 399. Those authorities recognize an ethical obligation to warn opposing counsel before seeking default and disapprove efforts to obtain a tactical advantage through entry of default without reasonable notice.

The Court also recognizes that Cross-Defendant did not timely file the proposed demurrer after obtaining relief from the original default. The attachment of a proposed pleading to a motion under Code of Civil Procedure section 473 does

not itself constitute the filing of that pleading, and Cross-Defendant was not entitled to wait indefinitely merely because the March 26, 2026, order did not specify a deadline. The present record therefore raises questions concerning the conduct and diligence of both parties.

A defaulting defendant's right to participate in the litigation is terminated, "and the subsequent filing of an answer or demurrer on his part is unauthorized and void, unless upon proceedings duly had, the default is first set aside." (A & B Metal Products v. MacArthur Properties, Inc. (1970) 11 Cal.App.3d 642, 647.) Accordingly, the demurrer and motion to strike are taken off calendar pending resolution of the second entry of default. The Court sets an Order to Show Cause regarding whether the May 7, 2026, entry of default should be vacated or stricken for December 1, 2026, at 8:30 a.m. in Department 414. Cross-Complainant shall file and serve a declaration stating: (1) whether Cross-Complainant or counsel notified Cross-Defendant or his counsel, before requesting entry of default, that Cross-Complainant intended to seek default; (2) the date, manner, and substance of any such notice; (3) whether Cross-Defendant or counsel responded; and (4) any other facts relevant to the request for entry of default. Cross-Defendant shall file and serve a declaration stating: (1) when Cross-Defendant and counsel received notice of the March 26, 2026 order; (2) why the proposed demurrer was not filed before May 8, 2026; (3) whether Cross-Complainant or counsel warned that a default would be requested; (4) the date, manner, and substance of any communications concerning the responsive pleading or default; and (5) any other facts relevant to whether the May 7, 2026 default should remain in effect. In lieu of the Order to Show Cause, the parties may submit a stipulated order vacating the May 7, 2026, entry of default and resetting the demurrer and motion to strike for hearing on the Court's regular law and motion calendar. Upon approval of the stipulation, the Order to Show Cause will be vacated.